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Dept. F43

Hearing Date: 09-04-26

Case # 25CHCV03010, Potgoreanu v.

Miskaryan, et al.

Trial Date: 04-23-29

MOTION FOR LEAVE TO

FILE A FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff Romica Potgoreanu

RESPONDING PARTY: Defendant Artashes Miskaryan

RELIEF REQUESTED

Order granting Plaintiff leave to file a

First Amended Complaint to allege punitive damages, add and clarify factual allegations and theories of liability based on newly discovered information about defendant Artashes Miskaryan's driving history and defendant Garegin Isajanyan's ownership and entrustment of the subject vehicle in this matter.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

On August 22, 2025, plaintiff Romica Potgoreanu (Plaintiff) filed this personal injury action against defendants Artashes Miskaryan and Garegin Isajanyan. Plaintiff seeks damages for injuries sustained in a vehicle collision on August 29, 2024, in which defendant Miskaryan rear-ended Plaintiff with a vehicle owned by defendant Isajanyan. The Complaint asserts motor vehicle and negligence causes of action. Plaintiff also alleges defendant Miskaryan breached his duty of care and was negligent per se by violating Vehicle Code section 22350. Defendant Miskaryan filed an answer on December 5, 2025.

On June 23, 2026, Plaintiff filed the instant motion for leave to file a First Amended Complaint to allege punitive damages, add facts, and clarify theories of liability. On August 24, 2026, defendant Artashes Miskaryan filed an opposition. Plaintiff filed a reply on August 24, 2026.

SUMMARY OF ARGUMENTS

Plaintiff contends that after filing the original Complaint, she has learned additional facts concerning defendant Miskaryan's driving history, including DUI-related information reflected in his California driving record and defendant Miskaryan's potential Uber-related driving, employment, agency, service, and platform relationship. Plaintiff contends the amendment will not prejudice defendants because trial is scheduled for April of 2029, discovery remains open, and defendants will have the opportunity to respond to the amended complaint.

In opposition, defendant Miskaryan asserts the court should deny the motion because the proposed amendment is futile, unduly prejudicial, and advanced in bad faith to inject character/propensity matters that will confuse the issues and expand discovery without probative value. According to defendant Miskaryan, the proposed DUI and prior conviction allegations are futile because they are classic character/propensity matter unrelated to the subject collision and are not a valid basis for punitive damages. Plaintiff does not allege defendant Miskaryan was impaired or intoxicated in connection with the subject collision, and the prior conviction allegations will cause undue prejudice, confuse the issues, and expand discovery burdens. Moreover, defendant Miskaryan claims the court

record indicates undue delay and bad faith in adding the allegations and that Plaintiff has failed to comply with Rule of Court, rule 3.1324.

ANALYSIS

A. Granting Leave to File an Amended Pleading

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.

The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

(Code Civ. Proc., § 473, subd. (a)(1).)

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

Judicial policy favors resolution of all disputed matters

between the parties, and therefore, courts have held that “there is a strong policy in favor of liberal allowance of amendments.” (Mesler

v. Bragg Management Co. (1985) 39 Cal.3d 290, 296-297.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530, citations omitted.)

Motions for leave to amend must also meet certain procedural requirements. California

Rules of Court, rule 3.1324(a) requires the motion to “(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the

additional allegations are located.”

Additionally, Rule 3.1324(b) requires that the declaration in support of a motion for leave to file an amended complaint must state: “(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.”

Plaintiff presents the amended declaration of attorney Christopher C. Lee, a clean copy of the proposed amended pleading, and emails showing an attempt to amend by stipulation. (Amended Declaration of Christopher C. Lee, Exhs. A, B.) Based on the proposed amended complaint, Plaintiff seeks to add a negligence per se cause of action against defendant Miskaryan, a negligent entrustment cause of action against defendant Isajanyan, and punitive damages against both defendants. (Lee Amended Decl., Exh. A: Proposed Amended Complaint ¶¶ 26-45.)

1. The motion fails to satisfy Rule 3.1324(a)

Plaintiff presents a clean copy of the proposed amended complaint. However, the notice of motion, motion, and supporting declaration do not state the proposed allegations with the appropriate page or paragraph numbers. Thus, Plaintiff’s motion fails to comply with Rule 3.1324(a).

However, attorney Lee’s supporting declaration satisfies Rule 3.1324(b).

The supporting declaration adequately demonstrates the effect of the amendment is to allege a negligence per se cause of action against defendant Miskaryan, a negligent entrustment cause of action against defendant Isajanyan, and punitive damages against both defendants. (Lee Amended Decl. ¶ 9.) According to attorney Lee, the amendment is necessary and proper to provide complete allegations concerning the new causes of action and punitive damages against the defendants; to provide defendant Miskaryan’s relevant driving history and DUI-related conduct; to clarify defendant Isajanyan’s ownership and entrustment of the subject vehicle to defendant Miskaryan; and to allege defendant Miskaryan’s potential Uber-related relationship or agency issues. (Lee

Amended Decl. ¶ 9.)

Attorney Lee claims leave was not sought earlier because the material facts were developed and confirmed only through ongoing investigation, party discovery, third-party records efforts, and the May 8, 2026 deposition. (Lee Amended Decl. ¶ 10.) Plaintiff acted promptly after those facts were developed. Attorney Lee discovered the facts giving rise to the amendment – Miskaryan’s August 16, 2024, DUI matter and resulting conviction – on May 7, 2026, when he was assigned this case and during a May 8, 2026, deposition when defendant Miskaryan testified that police arrested him and took his license after the August 16, 2024, DUI incident. (Id. ¶¶ 5-6.) Plaintiff then conducted an investigation and review of Miskaryan’s driving record, reflecting a suspended license which was reinstated on January 26, 2026. (Id. ¶ 7.) Moreover, Plaintiff issued subpoenas to Uber and the DMV on May 28, 2026, to obtain records concerning Miskaryan’s DUI, driving history, arrest-related documents, suspension, restriction, reinstatement, and related court proceedings and Miskaryan’s potential relationship with Uber, including onboarding, employment or service status, trip activity, location information, compensation, safety matters, and communications. (Id. ¶ 8.) Plaintiff claims leave was not sought earlier because the material facts were developed and confirmed only through ongoing investigation, party discovery, third-party records efforts, and the May 8, 2026 deposition. Plaintiff acted promptly after those facts were developed.

2. Defendants will suffer little, if any, prejudice.

Defendant Miskaryan contends including the separate DUI offense will be unfairly prejudicial and confuse the jury because Plaintiff does not allege Miskaryan was intoxicated or under the influence during the subject incident. (Opp. at p. 4:17-22.) In her January 2026 discovery responses, Plaintiff indicated that no person involved in the subject collision “took alcoholic beverages, marijuana, or other drugs or medication within 24 hours before the accident.” (Declaration of Gideon E. Sinasohn ¶¶ 5-7, 11-12, Exhs. A, B) Moreover, Plaintiff admits no one was cited by a law enforcement agency, and the Traffic Collision Report for the subject collision indicates defendant Miskaryan was at fault and Tesla Insurance accepted

100% liability for the accident. (Id.

¶¶ 8-9.)

If the party seeking the amendment has been

“dilatory,” and the delay has prejudiced the opposing party, the judge has

discretion to deny leave to amend. (Weil

& Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter

Group 2020) [Weil & Brown], ¶ 6:655, citations omitted.) “Prejudice exists where the amendment would

result in a delay of trial, along with loss of critical evidence, added costs

of preparation, increased burden of discovery.”

(Id., at ¶ 6:656, citations omitted.) However, “the fact that the amendment

involves a change in legal theory which would make admissible evidence damaging

to the opposing party is not the kind of prejudice the court will consider.” (Id.)

Absent prejudice, any claimed delay alone is not grounds for

denial. (Id., at ¶ 6:653 [citing Higgins

v. Del Faro (1981) 123 Cal.App.3d 558, 564-565].) “Even if some prejudice is shown, the judge

may still permit the amendment but impose conditions, as the Court is

authorized to grant leave ‘on such terms as may be proper.’” (Weil & Brown, supra, at ¶ 6:663,

citation omitted.)

After reviewing the moving papers, the court finds

defendant Miskaryan will suffer little prejudice from the DUI allegations. As alleged, Plaintiff seeks to use the August

16, 2024, DUI matter to demonstrate that defendant Isajanyan knew defendant

Miskaryan was unfit to drive the subject vehicle because of his prior DUI yet

still entrusted the subject vehicle to Miskaryan. Although Plaintiff does not allege Miskaryan

was intoxicated during the August 29, 2026, incident, Plaintiff intends to show

Isajanyan's conscious disregard for other drivers' safety by entrusting the

vehicle to an individual who was just arrested for a DUI. (Lee Amended Decl. ¶ 7, Exh. A at ¶¶ 41-45.)

Although Plaintiff answered “no” in response to form

interrogatory no. 14 (“Within 24 hours before the INCIDENT did you or any

person involved in the INCIDENT use or take any of the following substances:

alcoholic beverage, marijuana, or other drug or medication of any kind

(prescription or not)?”), Plaintiff also reserved the right to amend or

supplement the response. (Sinason

Decl., Exh. A at p. 8:19-9:7.)

Considering this matter is only a year old and discovery remains open,

the court finds that little if any additional costs will be added for

conducting further discovery in this matter.

Finally, Plaintiff's "negligence per se" cause of action

is separately improper because negligence per se is an evidentiary doctrine used to establish breach of duty of care under a negligence-related cause of action. (Epochal Enterprises, Inc. v.

LF Encinitas Properties, LLC (2024) 99 Cal.App.5th 44, 58, citation omitted.) Negligence per se is not an independent cause of action. (Ibid.) Because Plaintiff already alleges negligence against defendant Miskaryan, the negligence per se theory must be alleged as part of the already existing negligence cause of action.

Regardless, Plaintiff's motion is improper because it fails to fully to satisfy Rule 3.1324(a).

Therefore, the court denies Plaintiff's motion for leave to file a First Amended Complaint without prejudice.

CONCLUSION and ORDER

Motion for leave to file a First Amended Complaint is denied without prejudice.

Plaintiff to give notice.